

2018 Y L R 1713

[Lahore]

Before Jawad Hassan, J

SAJIDA ANWAR---Petitioner

Versus

ADDITIONAL DISTRICT JUDGE and others---Respondents

Writ Petition No.25857 of 2015, heard on 28th March, 2018.

Punjab Rent Restriction Ordinance (IV of 1959)---

---S. 13---Constitution of Pakistan, Art. 199---Ejectment petition---Concurrent findings of Courts below---Constitutional jurisdiction of High Court---Scope---Constitutional jurisdiction was exercised with great care and caution in matters relating to tenancy/ejectment of tenant as the same could not be used as a substitute for an appeal---Evidence duly appreciated by the courts below could not be re-appraised on the ground that some other view was possible in constitutional jurisdiction---Appraisal of evidence was the function of courts below and if the findings were based on proper appraisal of evidence, the same could not be interfered with lightly in exercise of constitutional jurisdiction---Party approaching the High Court under Art.199 of the Constitution had to demonstrate that there was some gross misreading or non-reading of evidence or any jurisdictional defect floating on the surface of record.

Mirza Book Agency through Managing Partner and others v. Additional District Judge, Lahore and others 2013 SCMR 1520; Nadeem Zafar and others v. Muhammad Ismaeel and others PLD 2012 Lah. 178; Hafiz Muhammad Shahid Nawaz v. Hafiz Muhammad Saeed 2010 CLC 1941 and Shajar Islam v. Muhammad Siddique and 2 others PLD 2007 SC 45 rel.

Muhammad Yousaf Lurka for Petitioner.

Shamim Ahmad for Respondent No.3.

Date of hearing: 28th March, 2018.

JUDGMENT

JAWAD HASSAN, J.---Through this constitutional petitions, the Petitioner has called in question judgments and decrees dated 30.09.2013 and 09.07.2015 passed by Civil Judge (Rent Controller), Lahore and learned District Judge, Pakpattan Sharif, whereby the ejectment petition filed by the Respondent No.3 was allowed and appeal preferred against the same by the Petitioner was dismissed. These concurrent findings of fact have been assailed through this constitutional petition by the Petitioner.

2. Precisely the facts necessary for adjudication of instant petition are that the Respondent preferred an ejectment petition in terms of the Section 13 of the Rent Restriction Ordinance, 1959 (the "Ordinance") seeking eviction of the Petitioner from the suit property description of which is given in para-1 of the ejectment petition on multiple grounds including default in payment of rent and damage to the suit property. The Petitioner contested and filed a written reply under the Ordinance, wherein he asserted that he purchased the suit house for consideration of Rs.50,000/- from the son of the Petitioner, who was ex-owner of the property and paid all the consideration amount in presence of witnesses. It is also averred that son of the Petitioner after receiving the consideration amount, promised to get register the suit property in favour of the Respondent No.3. It was further contended in the written reply that he came to know about the filing of ejectment petition when she received a notice from the Court that the Petitioner had filed ejectment against her. It has been submitted by the counsel of the Respondent No.3 that the Petitioner is neither tenant nor enter any rent agreement. After having heard the respective contentions of both the parties, the ejectment petition was allowed vide order dated 30.09.2013 by the Rent Controller, Lahore, on the ground of default in the payment of rent to the Respondent No.3, and he dismissed the written reply being devoid of any merits filed by the Petitioner. The Petitioner, being dissatisfied from the order of learned Rent Controller, Lahore filed his appeal before the learned District Judge, Lahore, who entrusted the same to the Additional District Judge, Lahore who dismissed the same through judgment and decree dated 09.07.2015. Hence this constitutional petition.

3. Learned counsel for the Petitioner has argued that both the courts below while deciding the matter have failed to evaluate the material on the record and he has drawn inference which were not warranted by law. He has further argued that no relationship of landlord and tenant exists between the Petitioner and the Respondent No.3 but both the courts below ignored this material fact.

4. Conversely, learned counsel representing the Respondent No.3 has vehemently refuted the arguments raised by learned counsel for the Petitioner. He added that tenancy between the parties is duly established on the record and the Petitioner has badly failed to prove her title over the suit property. Learned counsel contended that tenancy was oral inter se the parties due to close relationship of Petitioner and Respondent No.3. Learned counsel maintained that there are concurrent findings of facts recorded by both the courts below which are based on proper appraisal of evidence so the same cannot be interfered with in exercise of constitutional jurisdiction. Reliance is placed on "Mirza Book Agency through Managing Partner and others v. Additional District Judge, Lahore and others" (2013 SCMR 1520), "Nadeem Zafar and others v. Muhammad Ismaeel and others" (PLD 2012 Lahore 178) and "Hafiz Muhammad Shahid Nawaz v. Hafiz Muhammad Saeed" (2010 CLC 1941). Lastly, he prayed for dismissal of the writ petition.

5. I have heard learned counsel for both the sides at considerable length and also perused the record with their assistance.

6. The eviction of the Petitioner was sought on multiple grounds, some of those were though even not recognized under Section 13 of Ordinance. The ejectment petition was, however, allowed on the ground of default in the payment of rent. The Respondent No.3,

preferred petition under Section 13 of the Ordinance, seeking eviction of tenant and recovery of arrears of rent since 2005 till eviction. It is averred from the petition that the Respondent No.3 is owner of the premises in question, which was rented out to the Petitioner through an oral tenancy agreement at the rate of Rs.1000/- per month. The Petitioner paid rent upto March 2005 but thereafter she defaulted in payment of rent and refused to do so. The Petitioner was summoned, who appeared and submitted her written reply. The learned Tribunal dismissed the written reply and allowed the eviction petition and directed the Petitioner to vacate the rented premises within two months.

7. In order to prove his case, the Respondent No.3 appeared as AW1 and he produced Hafiz Munir Ahmad as AW-2 and furnished affidavits as Ex.AW-1 and Ex.AW-2. In documentary evidence, the certified copy of the sale deed was produced as Ex.A-1. On the other hand, Kashif Raza appeared as RW-1, Muhammad Iqbal RW-2, Sajida Bibi RW-3. They tendered their affidavits as Ex.RW-1 to Ex.RW-3.

8. Muhammad Siddique while appearing as AW-1 supported the contents of his petition. He deposed that the disputed property is the ownership of his son Muhammad Tanveer by virtue of sale deed, who rented out to the Petitioner on monthly rent of Rs.1000/-. The Petitioner has made default in payment of rent. He further deposed that the Petitioner Sajida is not the owner of the disputed property, however, she is in possession of the disputed property as tenant. However, Tanvir Ahmad appeared as AW-2, whose testimony is in line with the statement of AW-1.

9. This Court has also noted that on the other hand, Mst. Sajida appeared as RW-3 and she furnished her affidavit as Ex.RW-3, wherein she deposed that she purchased the disputed plot from Muhammad Tanveer in consideration of Rs.50000/- and the total sale consideration was paid to Muhammad Tanveer on 20.09.2001 in presence of witnesses. Moreover, she further deposed that it was decided that Muhammad Tanveer will get transfer the disputed property to the Petitioner directly from the original owner, but he fraudulently got the disputed property transferred in his name. It is seen that the Petitioner accompanied with the witnesses approached Muhammad Tanveer, who admitted and promised that he would get transferred the disputed property in her name, but he delivered the possession of the disputed property and also handed over the original sale deed. She is not tenant of the Respondent No.3. RW-1 and RW-2 also fortified the version of RW-3 in verbatim.

10. It is reflected from perusal of record that according to the registered sale deed, Muhammad Tanvir is the owner of the suit property, however, Respondent No.3 Muhammad Siddique being his real father had filed the ejectment petition being landlord having the authority to file the ejectment petition being attorney. The Petitioner in her evidence has not challenged the authority of the Respondent No.3 being landlord rather she has contended that suit property was purchased from Tanvir. There is no rent agreement and tenancy is oral. The Petitioner claimed to have purchased the disputed property from Respondent's son on 20.09.2001 through an oral agreement, but the record shows that on 20.09.2001, the said Muhammad Tanveer was not owner of the property. It has been observed from the record that Muhammad Tanveer purchased the disputed property on 09.10.2011 after nineteen days of the alleged oral agreement. It shows that the Petitioner has failed to prove that what was the reason which persuaded her to pay Rs.50,000/- to the Respondent's son for the purchase of disputed property to her from the original

owner. From the record, the Petitioner has also failed to prove that why she did not purchase the disputed property directly from the original owner. Nevertheless, the Petitioner has alleged that she purchased the disputed plot on 20.09.2001 through an oral agreement. Kashif Raza son of the Petitioner deposed that when the property was purchased, he along with his mother (the Petitioner), Muhammad Iqbal and Muhammad Tanveer were present. While, Muhammad Iqbal PW-4, in his cross-examination has admitted that when the amount was paid to Muhammad Tanveer, he along with his younger brother Muhammad Arshad, his mother, Sajida Bibi, Kashif AW-1, Wajid Tanveer and two other persons were present. So there are contradictions in the statements of PWs which is clear from the record. The perusal of statement of Petitioner also reveals that she purchased the disputed plot on 20.09.2001 and also applied for the gas and electricity connections, but in cross-examination, she admitted that when the disputed property was purchased, the electricity meter was already installed in the name of its previous owner. The Petitioner in her affidavit has taken stance that she paid Rs.50000/- to Muhammad Tanveer on 20.09.2001 and it was decided that Muhammad Tanvir will get transferred the disputed property to her directly from its original owner, but in cross-examination she has admitted this fact that she purchased the disputed property from Muhammad Tanvir. So there are a lot of variations and contradictions in the evidence of the Petitioner as seen from the record by this Court. Both the Courts below have concurrently held that the Petitioner has not succeeded to prove that she is in possession of the disputed property as owner. On the other, Hafiz Muhammad Tanvir (PW-2) has fully supported the version of the Petitioner that the disputed property was rented out to the Petitioner and due to close relationship, the rent deed was not reduced into writing. The evidence produced by the Petitioner is self-contradictory. The Petitioner has failed to establish that she is in possession of the disputed property as owner. In these circumstances, both the Courts below have rightly directed the Petitioner to vacate the rented premises and to pay arrears of rent till eviction. Further, there are concurrent findings of facts recorded by both the courts below which are based on proper appraisal of evidence so the same cannot be interfered with in exercise of constitutional jurisdiction. Reliance in this respect is placed on "Mirza Book Agency through Managing Partner and others v. Additional District Judge, Lahore and others" (2013 SCMR 1520), "Nadeem Zafar and others v. Muhammad Ismaeel and others" (PLD 2012 Lahore 178) and "Hafiz Muhammad Shahid Nawaz v. Hafiz Muhammad Saeed" (2010 CLC 1941).

11. There are concurrent findings of facts recorded by both the learned courts below which apparently do not suffer any legal infirmity. The Petitioners have failed to point out any misreading and non-reading of evidence by the courts below, while arriving at their conclusion and directed the eviction of the Petitioners from the rented Property. The constitutional jurisdiction is always exercised with great care and caution in such matters as the same cannot be used as a substitute for an appeal neither the evidence duly appreciated by the learned courts below can be re-appraised on the ground that some other view is possible in writ jurisdiction. However, the appraisal of evidence is the function of courts below and if the findings are based on proper appraisal of evidence then the same cannot be interfered with lightly in exercise of writ jurisdiction. The party approaching the High Court under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 has to demonstrate that there is some gross misreading or non-reading of evidence or any jurisdictional defect floating on the surface of the record but in the instant case all these preconditions are clearly missing. Reliance in this respect is placed upon *Shajar Islam v. Muhammad Siddique and 2 others* (PLD 2007 SC 45), wherein it has been held as under:---

"High Court in exercise of its Constitutional jurisdiction was not supposed to interfere in findings on controversial question of facts based on evidence, even if such finding was erroneous. Scope of judicial review of High Court under Article 199 of the Constitution in such cases was limited to the extent of misreading or non-reading of evidence or if finding was based on no evidence, which might cause miscarriage of justice. It was not proper for High Court to disturb finding of fact through reappraisal of evidence in Constitutional jurisdiction or to exercise such jurisdiction as a substitute of revision or appeal. Interference of High Court in concurrent findings of fact by the Courts regarding existence of relationship of landlord and tenant between the parties was beyond the scope of its jurisdiction under Article 199 of the Constitution."

12. The nutshell of the above discussion is that the findings of both the courts below are in consonance with law calling for no interference in exercise of writ jurisdiction. The Petitioner has failed to point out any misreading or non-reading in the judgments of both the courts below, warranting any interference by this Court, while exercising constitutional jurisdiction. This being so, the instant petition fails and is dismissed with no order as to costs.

SA/S-27/L

Petition dismissed.